

25AVCV01029 25AVCV01029

County: los-angeles

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Case Number: 25AVCV01029 Hearing Date: July 14, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

CASEY MITCHELL-COLLIER,

Plaintiff,

v.

DILLON SANDIDGE,

Defendant.

Case Number 25AVCV01029

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 14, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a breach of the implied warranty of habitability case arising from Plaintiff Casey Michell-Collier's leasing of a bedroom on the property owned by Defendant Dillon Sandidge.

On August 18, 2025, Plaintiff Casey Mitchell-Collier (Plaintiff) filed a complaint against Defendant Dillon Sandidge (Defendant).

On September 4, 2025, Plaintiff filed a first amended complaint against Defendant, asserting four causes of action for (1) breach of implied warranty of habitability, (2) negligence, (3) fraudulent concealment, and (4) retaliation.

Specifically, Plaintiff alleges that from April 1, 2021 through July 31, 2025, he leased a master bedroom and private bathroom at a property owned and leased by Defendant, located at 43141 Hampton Street, Lancaster, California (the Property). (FAC, ¶¶ 1-2, 5.) Upon moving in, Plaintiff claims he had no knowledge of any conditions of habitability, and alleges that Defendant concealed the existence of a long-standing plumbing defect in the bathroom and failed to disclose any prior leaks, repairs, or damage. (FAC, ¶ 5.) On April 3, 2025, Plaintiff was allegedly informed by a contractor that there was black mold in the bathroom as a result from the plumbing leak which had existed for years and was known to Defendant, who failed to take steps to repair until 2025. (FAC, ¶¶ 9-10, 12.)

On October 17, 2025, Defendant filed a demurrer to the first amended complaint and a motion to strike portions of the first amended complaint and as to all four individual causes of action.

The hearing on Defendant's demurrer is set for hearing on August 4, 2026.

On February 26, 2026, Plaintiff filed a motion to deem specified matters admitted and for monetary sanctions.

On April 23, 2026, Defendant filed an opposition.

On June 3, 2026, Defendant filed a notice of errata re the opposition to correct the hearing date.

No reply has been filed.

II. Legal Standard

Standard for Motion to Deem Requests for Admission Admitted – A party must respond to requests for admission within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) When a party fails to timely respond, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) An untimely responding party waives all objections, including privilege, unless they subsequently serve responses in substantial compliance with the Civil Discovery Act, and they demonstrate that their failure is the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a); § 2033.280, subd. (a).)

For untimely responses to requests for admission, the Court shall deem the requests for admission admitted unless the responding party serves a proposed code compliant response prior to the hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

III. Discussion

Application – Plaintiff moves to deem the truth of the matters contained in Plaintiff's Requests for Admissions numbers 7, 9, 14-18, 23, 29-30, 32, and 36 admitted. Plaintiff states that on November 24, 2025, he served his Requests for Admissions, Set One, on Defendant by electronic mail. (Motion, p. 2:8-10; Mitchell-Collier Decl., ¶ 2, Ex. 1.)

On December 24, 2025, Defendant's counsel served only objections due to a power outage which prevented access to the finalized responses, representing that complete responses would be served on or before December 30, 2025. (Motion, p. 2:11-13; Mitchell-Collier Decl., ¶ 4, Ex. 2.) On December 30, 2025, Defendant served the amended responses, which omitted the Requests for Admissions numbers 7, 9, 14-18, 23, 29-30, 32, 34, and 36. (Motion, p. 2:15-18; Mitchell-Collier Decl., ¶¶ 5-6, Ex. 3.) Plaintiff requests that these Requests for Admissions be deemed admitted for Defendant's failure to provide a response.

In opposition, Defendant argues that Plaintiff's motion is baseless because (1) Defendant served timely o on December 24, 2025, (2) Defendant served a written verified response which substantially complied with the procedural requirements of California Code of Civil Procedure section 2033.010 on December 30, 2025, (3) Plaintiff failed to meet and confer regarding Defendant's two responses served in December, and (4) Plaintiff's discovery request does not include a proof of service. (Opp., p. 2:19-28.)

Preliminarily, the Court notes that in neither Defendant's December 24, 2025 objections nor in his December 30, 2025 amended response did he include any objection, denial, admission, or statement of inability to admit or deny for requests 7, 9, 14-18, 23, 29-30, 32, or 36. No reason for this omission is offered. The Court also notes that a proof of service of Plaintiff's Requests for Admissions was filed on November 25, 2025 and Defendant's response on the deadline, December 24, 2025, indicates that Defendant was, in fact, served. Finally, Defendant is incorrect that Plaintiff's motion is predicated on California Code of Civil Procedure section 2033.290, as Plaintiff's motion is made pursuant to only sections 2033.280 and 2033.030, which do not require a meet and confer effort. (Opp., p. 2:19.)

A party who propounds requests for admissions may generally initiate three types of motions: "(1) motions to deem RFAs admitted based upon the responding party's failure to serve any responses at all in a timely fashion (§ 2033.280, subd. (b)); (2) motions to compel further responses to RFAs where the responses are claimed to be inadequate or the objections improper (§ 2033.290, subd. (a)); and (3) motions to deem responses admitted and/or for sanctions based upon the responding party's disobedience of an order compelling further responses (*id.*, subd. (e))." (St. Mary v. Superior Court (2014) 223 Cal. App. 4th 762, 777.)

Here, Plaintiff's motion falls within the first category. However, Defendant did not fail to serve any responses at all in a timely fashion. Defendant served unverified objections to 24 of the 36 requests, admitting, denying, or stating insufficient information or knowledge to admit or deny on December 24, 2025, excluding requests 7, 9, 14-18, 23, 29, 30, 32, and 36. However, Defendant's responses were unequivocally not code compliant. (See *Allen-Pacific, Ltd. v. Superior Court* (1997) 57 Cal.App.4th 1546, 1551 [unverified response to requests for admissions is not in substantial compliance], disapproved on other grounds in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983; *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [an unverified response to requests for admissions is "tantamount to no response[] at all"].)

Though untimely, Defendant then served verified amended responses as to 23 of the 36 requests, excluding requests 7, 9, 14-18, 23, 29, 30, 32, 34, 36, which either admitted, denied, or stated insufficient knowledge or information to admit or deny the requests on December 30, 2025. "[A] responding party's service, prior to the hearing on the 'deemed admitted' motion, of substantially compliant responses, will defeat a propounding party's attempt under section 2033.280 to have the RFAs deemed admitted." (St. Mary, *supra*, 223 Cal.App.4th at 776.) Furthermore, even where a responding party has failed to timely serve code-compliant responses, has not demonstrated that the failure to so serve was a result of mistake, inadvertence, or excusable neglect, and has thus waived any objection to the requests for admission, the presence of waived objections in a response governed by section 2033.280(c) does not necessarily prevent substantial compliance with Section 2033.220. (*Katayama v. Continental Investment Group* (2024) 105 Cal.App.5th 898, 901.)

The Court must evaluate the response to the request as a whole, and is not permitted to “segregate each individual RFA response for the purpose of finding that portions of the document are code compliant (and will therefore be accepted), while concluding that other portions are noncompliant (and will thus be rejected).” (St. Mary, supra, 223 Cal. App. 4th at 780.) The ability of the Court to do so is further negated by the fact that “there is an effective statutory vehicle by which a propounding party may seek a court order compelling a responding party to cure individual RFA responses deemed not to be in compliance with section 2033.220—namely, a motion to compel further responses under section 2033.290.” (Ibid.)

The Court finds that although Defendant’s verified amended response to Plaintiff’s Requests for Admissions was untimely and omitted any response to 13 of the 36 requests, as a whole, the response is in substantial compliance with Section 2033.220. Therefore, because Defendant served a substantially compliant verified amended response before the instant motion was filed and before the hearing date, the Court finds that this motion is not the proper avenue through which to address the deficiencies and omissions in Defendant’s response.

Accordingly, Plaintiff’s motion to deem the omitted Requests for Admissions admitted is DENIED.

Sanctions – Sanctions may be imposed for misuse of discovery process. (Code Civ. Proc., § 2023.030, subd. (a).) Failing to respond or to submit to an authorized method of discovery constitutes a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (d).) The Court must impose a monetary sanction on the party or attorney whose failure to serve timely requests for admission responses necessitated the motion. (Code Civ. Proc., § 2033.280, subd. (c).) “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280(c).)

Plaintiff requests monetary sanctions against Defendant and his counsel in the amount of \$110.00, comprised of the \$60.00 filing fee for the motion and a \$50.00 service fee. (Motion, p. 3:17-18.) In opposition, Defendant requests monetary sanctions in the amount of \$375 against Plaintiff, payable within 20 days of the hearing on this motion. (Opp., p. 2:2-3; Travis Decl., ¶ 6.)

Because Plaintiff’s motion is denied, Plaintiff’s request for monetary sanctions is DENIED.

The Court also finds that Plaintiff’s motion is not a misuse of the discovery process warranting monetary sanctions, particularly in light of Defendant’s deficient responses. Thus, in exercising its discretion, the Court DENIES Defendant’s request for monetary sanctions.

IV. Conclusion

Plaintiff Casey Mitchell-Collier’s Motion to Deem Specified Matters Admitted and for Monetary Sanctions is DENIED.

Defendant Dillon Sandidge’s request for monetary sanctions against Plaintiff Casey Mitchell-Collier is DENIED.